



Tammy Buchanan <tammy.buchanan@dataprotection.education>

Policies email: Crowthorne C of E

1 message

Tammy Buchanan <tammy.buchanan@dataprotection.education>

12 December 2022 at 15:40

To: Mrs Sharon Coggins <bursar@crowthornecofe.co.uk>, Katrina Brown <clerk@crowthornecofe.co.uk>

Bcc: Tammy Buchanan <tammy.buchanan@dataprotection.education>

Hi Sharon,

Just following up on your previous email and the other questions:

3) Working away from school policy is not the same as the Flexible working Request that you sent me. A flexible working request is about a change in contract when they want to reduce their hours or work more flexibly in relation to their contract. The working out of school policy was initially created during Covid to account for people having to work from home and the larger risks encountered as they were accessing data from home, often using their own devices. You would need this if you have staff that work from home.

5) GDPR Policy - this looks very similar to the DPE Model one. There was an update in January where the GDPR should be referred to The UK General Data Protection Regulation ('GDPR', or 'Regulation'). also the DPO details should probably be part of the beginning in section 4.3 where it talks about the DPO rather than as an appendix. The consent details are the same as those in the Model policy so are fine. As long as this policy is on your website then you don't necessarily need any further consent information, other than the actual consent form itself. The policy covers the main areas for a data protection policy as required.

6) SAR information - the policy does cover some of this, but is more about an individual's rights to be able to make a subject access request. A SAR procedure document specifies the right of access but in addition identifying it and then the procedure. You do have this separate procedure listed in appendix Two which does cover the actual procedure the school would take. In this instance it would be about how transparent it is for a parent or member of staff to be able find that procedure as an appendix to the document rather than as a separately listed one?

7) Data Breach procedure- same as above.

8) FOI policy is very different to the Model DPE one so have attached for information. As a rule if you have used a model template from your local authority then it should cover everything required. We do provide one as well. Ultimately the contents of a policy are decided by your SLT and governors. Perhaps when this particular policy is due for renewal you could take a look at our model one?

9) Data retention - I have attached a link to the iRMS toolkit in the Best Practice area (start at page 37 for the actual list):

<https://dataprotection.education/best-practice-library/documents/guides/18-irms-schools-toolkit>

as there are some items in your data retention schedule that do not match and you might want to check:

- **Governors reports:**

1.1.3 Reports presented to the Governing Body There may be data protection issues if the report deals with confidential issues relating to staff Reports should be kept for a minimum of 6 years. However, if the minutes refer directly to individual reports then the reports should be kept permanently SECURE DISPOSAL or retain with the signed set of the minutes

- **Head teacher and SLT:**

Records created by head teachers, deputy head teachers, heads of year and other members of staff with administrative responsibilities There may be data protection issues if the records refer to individual pupils or members of staff Current academic year + 6 years then review SECURE DISPOSAL

Pupil Files:

Primary Retain whilst the child remains at the primary school The file should follow the pupil when he/she leaves the primary school. This will include: • to another primary school • to a secondary school • to a pupil referral unit • If the pupil dies whilst at primary school the file should be returned to the Local Authority to be retained for the statutory retention period. If the pupil transfers to an independent school, transfers to home schooling or leaves the country the

file should be returned to the Local Authority to be retained for the statutory retention period. Primary Schools do not ordinarily have sufficient storage space to store records for pupils who have not transferred in the normal way. It makes more sense to transfer the record to the Local Authority as it is more likely that the pupil will request the record from the Local Authority.

Special Educational Needs files, reviews and Individual Education Plans Yes
Limitation Act 1980 (Section 2) Date of Birth of the pupil + 25 years
REVIEW NOTE: This retention period is the minimum retention period that any pupil file should be kept. Some authorities choose to keep SEN files for a longer period of time to defend themselves in a "failure to provide a sufficient education" case. There is an element of business risk analysis involved in any decision to keep the records longer than the minimum retention period and this should be documented.

5.2.2 Correspondence relating to authorized absence Education Act 1996 Section 7
Current academic year + 2 years
SECURE DISPOSAL

6.1.2 Examination Results (Schools Copy) Yes
Current year + 6 years
SECURE DISPOSAL
SATS records – Yes
Results
The SATS results should be recorded on the pupil's educational file and will therefore be retained until the pupil reaches the age of 25 years. The school may wish to keep a composite record of all the whole year SATs results. These could be kept for current year + 6 years to allow suitable comparison
SECURE DISPOSAL
Examination Papers
The examination papers should be kept until any appeals/validation process is complete

Permission slips - there is not a recommendation unless there is an incident.

Curriculum - 1.2.7 School Development Plans
No
Life of the plan + 3 years
SECURE DISPOSAL

6.2.4 Mark Books
No
Current year + 1 year

6.2.6 Pupils' Work
No
Where possible pupils' work should be returned to the pupil at the end of the academic year if this is not the school's policy then current year + 1 year
SECURE DISPOSAL

Personnel - 2.1.5 Proofs of identity collected as part of the process of checking "portable" enhanced DBS disclosure
Yes
Where possible these should be checked and a note kept of what was seen and what has been checked. If it is felt necessary to keep copy documentation then this should be placed on the member of staff's personal file

Pre-employment checks - please check against the iRMS toolkit sheet as there are several options and non match your retention list.

Finance -

3.3.4 All records relating to the creation and management of budgets including the Annual Budget statement and background papers
No
Life of the budget + 3 years
SECURE DISPOSAL

I hope that helps, have a lovely Christmas.

Many thanks,

Tammy Buchanan
Data Protection Consultant

BSc(Hons) Computer Science

ITIL 4 Service Management, NCFE Principles of Cyber Security

Direct dial: 07513 821409

Phone: 0800 0862018

<https://dataprotection.education/>



Data Protection Education Ltd. is a limited company registered in England and Wales.

Company No. 10863106

Registered office: 1 Saltmore Farm, New Inn Rd, Hertfordshire, SG7 5EZ



DPE Freedom of Information Policy V1.1.docx

49K